

SGA Election Procedures

Article I: General Provisions

Purpose

- This document establishes the rules and procedures governing all elections conducted by the Student Government Association (SGA), including General Elections, Vacancy Elections, Campaign Regulations, and Presidential Elections.

Authority

- The Election Committee is responsible for overseeing and enforcing this Election Code.
- The Secretary is responsible for coordinating election logistics and verifying election results.

Eligibility to Vote and Run

- All students in good standing with the university are eligible to vote in SGA elections. Candidates must meet eligibility criteria as set by SGA guidelines, which include but are not limited to:
 - I. Maintaining a minimum GPA as determined by SGA policy.
 - II. Being enrolled as a full-time student at the university.
 - III. Not being on academic or disciplinary probation at the time of candidacy declaration.
 - IV. Meeting any additional criteria set forth by the SGA Constitution or Bylaws.
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Article II: Senator General Election Procedures

Section 1: Frequency of Elections

General Elections of the Senate shall occur once per academic year during fall semester.

- The Election Committee shall announce election dates, nomination periods, and event schedule to the Senate. The Senate shall inform the student body.
- General Elections must be announced by the first day of classes
- All election dates must be set before the start of the semester to allow for advertising at events such as the Flock Party and Pre-Orientation events.

Section 2: Election Process

- The election period shall last two weeks in total.
- Candidates must submit their intent to run to the Secretary within the intent to run period, which spans the first week of the election period.
- The voting period shall last one week, following the conclusion of the intent to run period.
- Candidates must obtain votes from 2.5% of students in their respective school, based on the number of undergraduate students in the school.
 - Only votes that originate from the same school as the candidate will be considered valid.
- The option to reopen the intent to run form shall always be included in the election poll.
- If any candidates receive fewer votes than the option to reopen the intent to run form, those candidates shall not be elected.
- Of the remaining candidates, those receiving the most votes will fill the vacant seats.
- Any candidate who fails to be elected may still run in future elections.

If a position has only one candidate running, the candidate will automatically be elected unless the 'Reopen Nominations' option receives more votes than the candidate. If 'Reopen Nominations' receives more votes, the seat will remain unfilled until a future vacancy election.

Section 3: Verification

- After elections close, a Candidate Verification Meeting will be held by the Secretary and the Election Committee.
- The Secretary, in conjunction with the Office of Student Life, shall have up to five days to determine if the nominees meet the eligibility requirements to be a Senator as defined by Institute policy or established by resolution of the Senate.
- The Secretary will verify that the votes received are valid once the election period has passed.

Section 4: Announcement of the Results

- If the election closes on a Sunday night or Monday morning, verification should be completed by Wednesday.
- Election results must be announced by Wednesday, ensuring that newly elected Senators can attend the following Sunday Senate meeting.

Section 5: Tie Breaking Procedures

- In the event that two or more candidates receive an equal number of votes for a vacant Senate seat, the tie-breaking procedure shall be implemented as follows:
 - The Election Committee shall notify the tied candidates of the tie and the impending tie-breaking process.
 - The Election Committee shall hold a meeting to determine the Elected Candidate by a discussion and a unanimous vote.
 - In the event the election committee cannot come to a conclusion, the Senate shall hold a closed-form vote to determine the winner.
 - A simple majority vote is required to break the tie and determine the winning candidate.
 - The non-elected candidate can rerun during the next vacancy and or general election.
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Article III: Senator Vacancy Election Procedures

Section 1: Initiating Vacancy Elections

- Vacancy elections shall occur only for at-large seats in the event of a Senate vacancy or resignation.
- There must be a minimum of 2 vacancy elections. If, after that, there are still seats vacant:
 - It is up to the discretion of the Secretary to run an election **or** when the number of vacant seats hits 8% an additional election must occur the following week.
- Once the Election Committee recognizes a vacancy, the election process must begin within one week.

Section 2: Vacancy Election Process

- The Election Committee shall run a publicity campaign before or during the nomination period.
- The Secretary shall work with the Office of Student Life and relevant university administrators to ensure election procedures are properly followed and that results are validated.
- The Election Committee shall announce the election timeline to the Senate, which shall inform the student body.

- There shall be an intent to run period lasting 3 days, where candidates shall submit their intent to run to the Secretary
- The voting period shall last five days. Candidates must obtain 50 votes from all undergraduate students.
- There shall be a verification period immediately following the election period which shall last for an amount of time determined by the Election Committee of no more than two days.
- If a position has only one candidate running, the candidate will automatically be elected unless the 'Reopen Nominations' option receives more votes than the candidate. If 'Reopen Nominations' receives more votes, the seat will remain unfilled until a future vacancy election.

Section 3: Voting Period and Certification

- The nomination period shall last a minimum of three days and a maximum of seven days.
- Results must be certified before newly elected Senators assume office.

Section 4: Tie Breaking Procedures

- The Tie Breaking Procedures for Vacancy Elections shall follow the same Tie Breaking Procedures for Senator General Elections.

Section 5: Unfilled Seats

- If seats remain unfilled after a vacancy election, a new vacancy election must begin within two weeks.
- If vacancies persist after two rounds in the Fall semester and the Spring semester, the Senate may vote by a simple majority to close unfilled seats for that academic year.

Section 6: Vacancies During Recess

- If a vacancy occurs while the Senate is not in session, the vacancy election procedure shall commence once the Senate reconvenes.
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Article IV: Presidential Elections

Section 1: Frequency of Election

- Presidential Elections shall occur once per academic year, following the General Election.
- The Election Committee shall announce election dates, nomination periods, and debate schedules to the Senate and the Student Body.
- All election dates must be set before the start of the semester to allow for sufficient preparation and advertising.

Section 2: Election Process

- The election period shall last two weeks in total.
 - Candidates must submit their intent to run to the Secretary within the first week of the election period.
 - The voting period shall last one week, following the conclusion of the intent to run period.
- Candidates must obtain signatures from 5% of the student body during the nomination period.
 - Candidates may collect signatures via paper forms only.
 - The option to reopen the intent to run form shall always be included in the election poll.
 - If any candidates receive fewer votes than the option to reopen the intent to run form, those candidates shall not be nominated.
- If a position has only one candidate running, the candidate will be elected unless the 'Reopen Nominations' option receives more votes than the candidate. If 'Reopen Nominations' receives more votes, the Election Committee must establish a two week timeline for a new election within three days.

Section 3: Verification

- After nominations close, a Nomination Verification Meeting will be held by the Secretary and the Election Committee.
- The Secretary, in conjunction with the Office of Student Life, shall have up to five days to determine if the nominees meet the eligibility requirements to be President as defined by Institute policy or established by resolution of the Senate.
- Candidates must meet with the Election Committee before campaigning begins to discuss election rules, ethical guidelines, responsibilities, and campaign materials.

- The Secretary along with the Faculty Advisor will verify that the votes received are valid once the election period has passed.

Section 4: Announcement of Results

- Election results must be announced to the Senate in a Senate meeting and then the following morning to the student body via email.

Section 5: Required Events

- Presidential Debate:** A mandatory debate shall be held before the end of the voting period, allowing candidates to present their platforms to the student body. The SGA Faculty advisor will moderate the debate.
 - Vice President of Operations Debate:** a mandatory debate shall be held before the end of the voting period, allowing candidate perspective for the specific body. The SGA faculty advisor will moderate.
 - Meet the Candidates:** a mandatory with the purpose for the student body to meet all the candidates.
 - d. Any and all other events deemed by the Election Committee
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Article V: Campaign Regulations & Enforcement

Section 1: General Campaign Rules

- No campaign materials (posters, handouts, social media posts, etc.) may be publicized before the required Nomination Verification Meeting.
- No candidate shall engage in coercion, bribery, intimidation, or voter suppression.
- Candidates must not slander opponents.
- Candidates must adhere to the university's posting and digital communication guidelines.
- Spending Limits: Campaign budgets must not exceed a set limit in negotiation with the candidates and determined by the Election Committee.
 - Candidates must submit a budget to the Election Committee.
- Campaigns must be student-run; no faculty, staff, or external organizations may assist with campaign materials, finances, or endorsements.

Section 2: Campaign Materials & Digital Campaigning

- All campaign materials must be approved by the Election Committee before distribution.
- Physical campaign materials (flyers, posters, handouts, etc.) must follow university posting policies.
- Digital Campaigning Rules:
 - Candidates may use social media but must follow SGA and university ethical guidelines.
 - Mass emailing through university systems is prohibited unless explicitly allowed.
 - Social media ads, endorsements, or posts must be made using personal or student-run accounts.
- SGA resources, including email lists, meeting spaces, official SGA social media accounts, and financial accounts, may not be used for campaigning. The use of any SGA resources must be explicitly approved by both the Election Committee and the Treasurer. Candidates must submit a formal request for any intended SGA resource use, and approval must be documented in writing.

Section 3: Removal of Campaign Materials

- All physical campaign materials must be removed within 24 hours of the election period closing.
- Any candidate failing to remove their materials may face a minor election infraction.

Section 4: Infractions & Enforcement

I. Election Violations

- Violations of campaign rules or election integrity shall be reviewed by the Election Committee.
- If a violation is confirmed by discussion with the Election Committee and the SGA Advisor, then they shall classify it as either Minor or Severe and impose appropriate repercussions.

II. Infraction Penalties

Minor Infractions

- Warning issued to the candidate.
- Suspension of campaign privileges (e.g., removal of posters or digital materials).

- Requirement of an apology letter to the SGA.

Severe Infractions

- Disqualification from the election.
- Ban from all future SGA elections.
- Suspension from holding executive board positions in any Recognized Student Organization as determined by the SGA Advisor in collaboration with the Office of Student Life.

III. Appeals Process

- Appeals on penalties levied by the Senate shall be reviewed by the SGA Advisor and the Election Committee Chair.
- If an appeal is deemed valid by the SGA advisor and the Election committee a revote period may be scheduled within the next academic week.

Section 5: Conflict of Interest

- In the event of an SGA Presidential Candidate(s) serving on the Election Committee, then the following procedure must be followed:
 - The Candidate(s) must recuse themselves from the Election Committee.
 - The Advisor will take over from the Secretary as Election Committee Chair
 - The Secretary must appoint a Senator from the Candidate(s) school as a pro team member until the Presidential Election has ended.
 - If a candidate is the Secretary, the Advisor will take over from the Secretary as Election Committee Chair.